EPHIAS MUNODAWAFA
and
CHIEF MURINYE N.O
versus
MATUBEDE MUDAVANHU
and
CHIEF MUGABE N.O
and
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 26 January & 20 April 2026

Court Application

P Kufazvinei, for the applicant
M.S Katsande, for the 1st and 2nd respondents

MANZUNZU J

INTRODUCTION

(1) This is an opposed court application for a declaratory order made in terms of section 14 of the High Court Act [*Chapter 7:06*] where a relief is being sought in the following terms:

1. "The court application for a declaratory order be and is hereby granted.
2. It is hereby declared that the Boroma area in Masvingo Great Zimbabwe is an area under the jurisdiction of the applicants.
3. The 1st and 2nd respondents are hereby interdicted from interfering with the governance and jurisdiction of the applicants in the Boroma area.
4. 1st and 2nd respondents shall pay costs of suit on a legal practitioner and client scale."

BACKGROUND

(2) The first applicant is a male adult who is a substantive Chief of the Murinye dynasty found in Masvingo district, the Great Zimbabwe area.

(3) The second applicant is Chief Murinye N.O an institution of traditional leader recognised in terms of Chapter 15 of the Constitution of Zimbabwe, 2013 (the Constitution).

(4) The first respondent is a male adult, the substantive Chief for the Mugabe dynasty found in Masvingo district, the Great Zimbabwe area.

(5) The second respondent is Chief Mugabe N.O an institution of traditional leaders recognised in terms of Chapter 15 of the Constitution.

(6) The third respondent is the Minister of Local Government and Public Works, who is responsible for the administration of chieftainship.

(7) The applicants and respondents share customary and administrative boundaries in the Great Zimbabwe area.

The applicants' case is that:

(8) The first and second applicants have jurisdiction over the Boroma area. In 2014 the first applicant made recommendations for the appointment of thirty- three village heads in the Boroma area.

(9) The third respondent accepted the recommendations and appointed the village heads.

(10) The first and second respondents have always disputed the first applicant's jurisdiction over the Boroma area.

(11) On 6 September 2017, the first, second applicants, and the first and second respondents entered into an agreement the terms of which were that the Boroma area was under Murinye Chieftainship, meaning it was under the applicant's jurisdiction.

(12) The third respondent on 8 September 2017 wrote a letter to the Provincial Administrator for the Masvingo Province confirming the agreement made by the parties referred to above.

(13) The Boroma area was placed under the first applicant's jurisdiction both culturally and administratively.

(14) The agreement was also accepted by the Ministry of Rural Development, Promotion and Preservation of National Culture and Heritage on 12 September 2017.

(15) Despite the agreement and recognition by the Minister, disputes and uncertainties regarding the chieftainship jurisdiction over the Boroma area persist.

(16) On the basis of this background the applicant seeks a declaratory order to the effect that the Boroma area in Masvingo falls under the jurisdiction of the applicants in terms of the Constitution as read with the Traditional Leaders Act [*Chapter 29:17*].

(17) The first and second a respondents raise three preliminary points which are the basis of this judgment:

a) The first and second respondents allege that the applicants have not exhausted domestic remedies in terms of s 286 (1) (f) of the Constitution and ss 35 and 36 of the Traditional Leaders Act.

b) The first and second respondents also state that the relief sought is incompetent, the applicant ought to have compelled the third respondent to exercise his power and discretion in terms of the Act.

c) The first and second respondents also state that the application is fatally defective such that there is no valid application before the court in that the founding affidavit includes a declaration by the applicant that his oath of deposition was taken at Harare on 24 July 2025 and yet the Commissioner of Oaths before whom the applicant took his oath is based in Masvingo as appears e*x facie* on the stamp endorsed on the affidavit.

In the event all or any of the preliminary points succeeding, the 1st and 2nd applicants ask that the matter be dismissed with a punitive order of costs on a higher scale of attorney -client scale.

I will now deal with the preliminary points not necessarily in the order in which they were raised.

1. **Whether or not the application is fatally defective.**

(18) The first and second respondents argue that in the execution of affidavits, the oath of deposition taken by a deponent in the presence of a commissioner of oaths must be done contemporaneously by both the deponent and the commissioner of oaths.

(19) The first and second applicants argue that all the essential requirements of a valid affidavit were present. While they accept that the affidavit reads that it was commissioned at Harare the argument is that it was merely typed Harare and that was not the insertion by the Commissioner of Oaths.

(20) The court in *Mandishayika* v *Sithole* HH 798/15 defined an affidavit and how it ought to be done. It stated that:

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

(21) In *S* v *Hurle & Ors* (2) 1998 (2) ZLR 42, the court stated that when commissioning a deponent should appear before the Commissioner of Oaths and affirms that all the procedures have been complied with by signing. The court stated that:

> "A justice of the peace, or a commissioner of oaths, called upon to attest a document, has a duty, exemplified by the solemnity of the oath he is permitted to administer. He is obliged, without fail, to have the deponent appear before him. He has no excuse for not administering the oath, for not calling upon the deponent to swear that the deposition is, to the best of his knowledge, true in every respect. A deponent's signature has to be affixed in the presence of

> the commissioner. The commissioner's own signature is an assurance that all these procedures have been complied with."

(22) The court in *Mandishayika supra* also rendered an affidavit invalid due to the differences in the dates of signing of the affidavit by the deponent *vis a vis* the date the affidavit was commissioned and the court had this to say:

> "In *casu*, the deponent signed the deposition on a different date, and the commissioner commissioned it several months after that. There is no assurance that the deponent signed in the presence of the commissioner or even that he ever took the requisite oath. Clearly the affidavit was not properly commissioned and so should not have been accepted as an affidavit."

(23) In *Ndoro & Anor* v *Conjugal Enterprises (Pvt) Ltd & Anor* HH 814/22 the Court ruled that there is a danger in accepting an improperly commissioned affidavit: The court ruled that:

> "Thus, there are many dangers of accepting an improperly commissioned affidavit. It is apposite that there must be strict adherence to the proper methods of commissioning affidavits. Any compromise would bring justice into disrepute."

(24) The first and second respondents argue that the founding affidavit is invalid because it was sworn in Harare when the applicant resides in Masvingo and the Commissioner of Oaths is also said to be in Masvingo. The applicants argue that the discrepancy on the place of commissioning is not of consequence. I disagree. In fact I will add to the list of the requirements of a valid affidavit to say an affidavit which does not state the place where it was commissioned is invalid. This is for the simple reason that the place of execution assists in determining the jurisdiction of the Commissioner of Oaths. There are many dangers of accepting an improperly commissioned affidavit. There must be strict adherence to the proper methods of commissioning affidavits. Therefore, the preliminary point that the founding affidavit is fatally defective is upheld.

Whether or not the applicants have not exhausted internal remedies and whether the relief sought is incompetent.

(25) Sections 285 and 286 of the Constitution provide for the establishment and functions of the National Council of Chiefs and Provincial Assemblies of Chiefs. In terms of s 285(2), a Provincial Assembly of Chiefs must be established for each province by an Act of Parliament. Section 286(1)(f), states that one of the functions of a Provincial Assembly is to facilitate the settlement of disputes between and concerning traditional leaders within its province. It provides that:

> "286 **Functions of National Council and provincial assemblies of Chiefs**
>
> (1) The National Council of Chiefs and, within its province, a Provincial Assembly of Chiefs have the following functions-
> (f) to facilitate the settlement of disputes between and concerning traditional leaders."

(26) Section 35 of the Traditional Leaders Act [*Chapter 29:17*] provides that there shall be meetings conveyed by the Provincial Assembly at least twice a year. Section 36 states the functions of the Provincial Assembly. The sections state that:

> "35 "(2) Subject to section 38(3) of the Electoral Act [Chapter 2:13] (No. 25 of 2004), a provincial assembly shall meet at least twice a year at such time and place as the Minister may from time to time determine:
>
> Provided that the Minister shall call a meeting of a provincial assembly whenever requested to do so by not less than one-third of the members of that provincial assembly.
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> **36. Functions of provincial assemblies**
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> The functions of a provincial assembly shall be—
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> (b) to consider and report on any matter which is referred to it by the Minister, the Council or a member of such provincial assembly; and
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> (c) to bring to the notice of—
>
> (i) the Council, any matter of national interest;
>
> (ii) the Minister, any matter of local interest;
>
> which affects the inhabitants of the province concerned or any part thereof, or which concerns their interests or well-being."

(27) The court in *Rutsate* v *Wedzerai & Ors* SC 45-22 found that:

> "The original jurisdiction of the High Court is unlimited, that is to say, it can hear and determine any civil dispute, whatever the nature of the claim. Since s 283 of the Constitution and the Traditional Leaders Act both do not expressly oust the jurisdiction of the High Court from determining traditional leadership disputes, it follows that it still maintains its unlimited original jurisdiction over such matters.
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> The court a quo correctly found that it had the requisite jurisdiction to hear the matter. Section 283 (c) of the Constitution has vested the power to deal with disputes relating to chieftainship in the President as a domestic resolution mechanism. It is not a substantive provision as it requires operationalization through an Act of Parliament. The provision does not have retrospective application. It does not oust the inherent power of the High Court to determine such matters. The matter commenced before the court a quo prior to the coming into force of the Constitution in 2013. It was therefore pending when the Constitution was promulgated. That being the case, it must proceed in terms of para 18(9) of the Sixth Schedule of the Constitution."

(28) The court in *Marange* v *Marange & Ors* SC1-21also noted that "the first ground of appeal challenging the assumption of jurisdiction by the court *a quo* in a chieftainship dispute, as having been ousted by s 283 of the Constitution is misplaced and cannot be sustained". The court remitted back the matter to the Minister to convene a meeting with the provincial assembly to resolve the dispute. In referring the matter to the Minister, the court noted that this can only be done in exceptional circumstances. It stated that:

> "It is settled law that the courts should not take over the functions of an administrative authority and interfere with its actions or decisions by substituting them or setting them aside. See *Affretair (Pvt) Ltd & Anor v M.K. Airline (Pvt) Ltd* 1996 (2) ZLR 15 (S), at 21; *Zimbabwe School Examinations Council v Mukomeka & Govhati* SC10/20, at pp. 17-18. I would extend this broad principle to postulate that, in certain limited circumstances, it might become necessary and appropriate to invoke such judicial restraint, even where the administrative action or decision in question is shown to have been procedurally irregular. This might arise, for instance, where judicial interference would entail serious administrative disruption or result in some grave miscarriage of justice.
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> In any event, the general principle of judicial non-interference is not immutable and may be departed from in exceptional cases: where the end result is a foregone conclusion and it would be a waste of time to remit the matter for corrective action; where further delay would prejudice the applicant; where the extent of bias or incompetence displayed is such that it would be unfair to force the applicant to submit to the same administrative jurisdiction; where the court is in as good a position as the administrative body or functionary to make the appropriate decision."

(29) In terms of the Constitution and the Traditional Leaders Act cited above, the Provincial Assembly's function is to facilitate the settlement of disputes between and concerning traditional leaders within its province. That does not oust the High Court's inherent jurisdiction. The matter is properly before this Honourable Court.

(30) As in the *Marange* case *supra* a case can be referred to an administrative authority only in exceptional circumstances. In this instance the applicants seek a declaratory in terms of Section 14 of the High Court Act [Chapter 7:06**]** which provides that;
"The High Court may, in its discretion at the instance of any interested person enquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

(31) The jurisdiction to grant declaratory orders is exclusively vested in the High Court. Neither the National Chiefs Council nor any other tribunal or forum possesses the constitutional or statutory power to make declarations of rights under section 14 of the High Court Act.

(32) The National Chiefs Council and the Provincial Assembly of Chiefs lack the power to grant the relief sought by the applicants. Their functions are advisory and promotional, not adjudicatory. They facilitate in the resolution of disputes between traditional leaders. This explains the absence of statutory provisions establishing a dispute resolution framework. They cannot grant an order enforceable at law.

(33) The preliminary point on the exhaustion of the internal remedies and consequently the incompetence of the relief being sought must fail.

DISPOSITION

1. The preliminary points raised that the applicants have not exhausted internal remedies and that the relief sought by the applicants is incompetent have no merit and are therefore dismissed.
2. The preliminary point raised that the founding affidavit is fatally defective has merit and is thus upheld.

3. The matter is struck off the roll with costs.

MANZUNZU J:……

Prichard Attorneys, first and second applicants' legal practitioners.
Tanyanyiwa and Associates, first and second respondents; legal practitioners.